CITY OF WALNUT CREEK

Agenda Item Number 5a

Agenda Report

Date: April 21, 2026

To: City Council

From: City Manager's Office

Subject: Direction to Initiate the Elections Code 9212 Report on the Walnut Creek Senior Housing Transit Village Initiative Related to a 2.4-acre site located at the northeast corner of North California Boulevard and Ygnacio Valley Road and enter into a cost payment/reimbursement agreement with Friends of Walnut Creek Senior Housing

Statement of Issue

The City Clerk's Office received a Notice of Intent to Circulate Petition for the Walnut Creek Senior Housing Transit Village Initiative which would, among other things, amend the Walnut Creek General Plan, North Downtown Specific Plan, Zoning Ordinance and Zoning Map to change existing land use regulations for a 2.4 acre parcel located at the northeast corner of North California Boulevard and Ygnacio Valley Road to replace currently approved office uses with senior housing and would increase the floor area ratio for commercial uses on the site from 0.3 to 0.6. Elections Code Section 9212 authorizes the City to prepare an informational report related to the proposed ballot measures. Friends of Walnut Creek Senior Housing has requested that the City prepare the report and has offered to reimburse the City for the costs incurred in preparing the report.

Discussion

On March 16, 2026, the City Clerk's Office received a Notice of Intent to Circulate Petition for the Walnut Creek Senior Housing Transit Village Initiative (Initiative). The proponents of the Initiative are Stephen L. Kostka, Marlene R. Farrell and Haley Murphy (Proponents). The relevant properties are owned by Hall Equities Group.

The purpose of the Initiative is to amend the Walnut Creek General Plan including the Housing Element, North Downtown Specific Plan, Zoning Ordinance and Zoning Map to change existing land use regulations for a 2.4 acre parcel located at the northeast corner of North California Boulevard and Ygnacio Valley Road to replace currently approved office uses with senior housing and also to increase the floor area ratio for commercial uses on the site from 0.3 to 0.6. The Measure would create a new zoning district titled "Mixed Use – Residential Senior & Commercial" applicable to the 2.4 acre property. Senior housing would be limited to uses serving primarily persons 55 years of age or older. Permitted commercial uses would include but not be limited to certain retail sales, banks, eating and/or drinking establishments, food and beverage sales, health clubs, offices, commercial recreation and entertainment, adult and child day care facilities, emergency medical care, and cultural institutions.

California Elections Code Section 9212 allows the City Council to refer the proposed initiative measure to city departments for preparation of an informational report (Report) on the proposed citizen initiative which may include reporting on any or all of the following:

1. Its fiscal impact;
2. Its effect on the internal consistency of the City's general and specific plans, including the housing element, the consistency between planning and zoning, and the limitations on City actions;
3. Its effect on the use of land, the impact on the availability and location of housing, and the ability for the City to meet its regional housing needs;
4. Its impact on funding for infrastructure of all types, including, but not limited to, transportation, schools, parks and open space. The report may also discuss whether the Initiative would like to result in increased infrastructure costs or savings, including the costs of infrastructure maintenance, to current residents and businesses;
5. Its impact on the community's ability to attract and retain businesses and employment;
6. Its impact on the uses of vacant parcels of land;

7. Its impact on agricultural lands, open space, traffic congestion, existing business districts, and developed areas designated for revitalization;
8. Any other matters the legislative body requests to be in the report.

On March 25, 2026, the City Manager received a letter from the Hall Equities Group requesting that City Council order the preparation of the Report and have it completed by early June and ready to be presented at the June 16, 2026 City Council meeting. Hall Equities further stated that it would pay for the City's cost in preparing the Report.

Preparing the 9212 Report will provide the City Council with an independent, comprehensive analysis of the effects of the proposed initiative, allowing for more informed decision-making prior to taking further action.

Staff recommends the City Council direct the City Manager to prepare the Report and to enter into an agreement with Friends of Walnut Creek Senior Housing for payment/reimbursement to the City of the costs of preparing the report.

Timeline

March 16, 2026	City Clerk's Office received a Notice of Intent to Circulate Petition for the Walnut Creek Senior Housing Transit Village Initiative (Initiative).
March 25, 2026	City Manager received a letter from Hall Equities Group requesting that City Council order the preparation of the Elections Code 9212 Report.
By March 31, 2026 – completed March 26, 2026	City Attorney to prepare Ballot Title and Summary of the proposed Initiative (EC 9203).
April 3, 2026	Signature circulation can begin as the Notice of Intent and the Ballot Title and Summary have been published in the East Bay Times (EC 9207). Note: The time period for gathering signatures is up to 180 days from

	the date of receipt of the Ballot Title and Summary – September 22, 2026 (EC 9208), but can be shorter if the signatures are collected faster. The signature threshold is 10% of registered voters. Council must adopt or place on the next regular election (EC 9215). Note: The last Statement of Registration was submitted to the Secretary of State on April 3, 2026. At that time, the Registrar of Voters indicated that there were 49,868 registered voters in the City of Walnut Creek.
April 21, 2026 City Council Meeting	Council is being asked to direct the City Manager to prepare the Elections Code 9212 Report on the Walnut Creek Senior Housing Transit Village Initiative and to enter into a cost payment/reimbursement agreement with Friends of Walnut Creek Senior Housing.
TBD	Filing of petition by proponents (EC 9210) with the City Clerk. The City Clerk examines the petitions to determine if the number of signatures affixed, prima facie, is equal to or greater than the number of signatures required.
TBD	Examination of signatures (EC 9211). The Elections Official (Contra Costa Clerk Recorder's Office) has 30 days from the date of filing to check the signatures on the petition. (EC 9211, 9214, 9115)
TBD	The Elections Official (Contra Costa Clerk Recorder's Office) certifies to the City Council

	the sufficiency of the petition. (EC 9211, 9414, 9115)
TBD, tentative for June 16, 2026 City Council Meeting	Report presented to the City Council (no later than 30 days after petition is certified as sufficient). (EC 9212(b))
No later than August 7, 2026	Deadline to deliver resolution placing a measure on the ballot to the Registrar and request election consolidation for the November 3, 2026 Election. (E-88)

Environmental Review

Preparing the Report is not a project as defined under CEQA.

Financial Impacts

Friends of Walnut Creek Senior Housing will pay/reimburse the City for the costs incurred by the City, including staff, counsel and third-party consultant costs, incurred in preparation of the Report. Staff will be soliciting proposals from consultants who will be drafting the Report; the total cost is currently unknown.

Alternative Action

Not provide direction to staff to prepare the report. Preparing the Report is not a requirement under the California Elections Code and City Council can act on the Initiative without the Report.

Attachments

Attachment 1: Notice of Intent to Circulate Petition

Attachment 2: Draft Reimbursement Agreement

City Council Action Recommended

Move to direct the City Manager to prepare the Elections Code 9212 Report on the Walnut Creek Senior Housing Transit Village Initiative and to enter into a cost payment/reimbursement agreement with Friends of Walnut Creek Senior Housing.

Staff Contact

Charles Ching, Assistant City Manager
925-943-5814
ching@walnutcreekca.gov